

The Gift of Latency

why it's time to reset our AI expectations



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When MIT Technology Review released its **end-of-year “Hype Correction” package**, a series designed to reset expectations about what AI is and where we go next, it made a telling choice. To illustrate the friction between the promise of Silicon Valley and the reality of the real world, they didn’t choose finance or medicine. **They chose the law.**

That our profession was selected as the lens for this analysis suggests that the legal industry has become the epicenter for the most critical experiment of our time: how generative AI interacts with high-stakes, judgment-heavy professional work. Yet, while the world is watching us to see how this plays out, we’re largely still operating in a defensive posture, asking with a mix of dread and resignation: *What is this technology going to do TO us?*

This is the wrong question.

This MIT piece offers a helpful reality check, detailing the “ambiguity gap” where models fail and the stubborn persistence of the human element. And if you read closely, this isn’t just a permission slip to stop worrying; it’s a roadmap for leading. The data suggest that the “AI revolution” isn’t a tidal wave we just have to survive. Instead, it’s a tool implementation challenge that we have the agency to solve.

We need to stop acting like spectators in our own industry. Here are four lessons on how we can stop reacting to the hype and start designing the future proactively.

1. The “Ambiguity Gap” is our new map for value

The [article](#) highlights a critical discrepancy: while AI can smash the Uniform Bar Exam (a closed-universe test), it struggles significantly with the “Professional Reasoning Benchmark,” scoring only 37% on difficult problems. The models falter when faced with “gray areas,” “novel questions,” and “subjectivity.” In other words, the actual practice of law.

The Proactive Shift: Instead of viewing this as a reprieve until the next round of the latest and greatest models arrive, we should view it as a permanent directive for both legal education and practice. We need to stop valuing lawyers for our ability to act like hard drives, by retrieving and regurgitating information, and start valuing ourselves for our ability to navigate ambiguity. The “gap” in AI capability is exactly where human expertise must deepen. If AI handles the black-and-white, we must double down on being masters of the gray.

2. We must replace “osmosis” with intentional design

Perhaps the moment in the article that best articulates the human anxiety of this era comes from a junior associate who loves using AI tools but admits, “I’m worried that I’m not getting the same reps that senior attorneys got.” For decades, the legal profession has relied on a passive “apprenticeship by osmosis” model, where young lawyers supposedly learn judgment by slogging through thousands of hours of grunt work.

But let’s be honest: that model was always terribly inconsistent. Because we have no common agreement on what successful training actually looks like, we’ve relied on a “we know it when we see it” standard. In practice, whether a junior associate developed the necessary skills often depended entirely on the “luck” of the draw—which partner they were assigned to, who took them to lunch, and, inevitably, the demographics they were born with.

The data prove that this “luck” is not random; it’s structural. According to NALP, while women of color make up nearly 17.5% of associates, they account for just 4.1% of equity partners. This massive drop-off confirms that the “osmosis” model doesn’t just fail to teach skills consistently; it systematically fails to identify and nurture talent that doesn’t fit a specific demographic profile.

The Proactive Shift: The disruption of the “osmosis” model isn’t a tragedy. Rather, it’s an opportunity to fix a broken system. Because if AI automates the drudgery, we’re forced to finally define what competence looks like so we can actively train for it. We’re forced to move from passive observation to active simulation. Other high-stakes industries like aviation use flight simulators to teach judgment without requiring pilots to fly empty routes for years. We need to build the “flight simulators” for law. How might we intentionally design mentorship and feedback loops that rely on clear standards, not just the luck of the draw?

3. Treat AI as a utility, not a colleague

The article notes that successful litigators are treating AI as a “utility” for specific tasks, while those who try to treat it as a thinking partner often find it “hallucinating” or lacking a “mental model of the world.”

The Proactive Shift: We need to stop anthropomorphizing this technology. When we talk about AI as a “who,” i.e., a digital associate that might replace us, we subconsciously cede authority. When we treat it as a “what,” e.g., a high-powered utility like electricity, we remain in the driver’s seat. A proactive orientation treats AI as a powerful, high-risk tool that requires a skilled human operator to verify, synthesize, and apply output. Because you don’t ask a tool to *design* your legal strategy, you use it to *build* what **you** designed.

4. Business models are choices, not laws of physics

Finally, the author of this piece notes that despite the efficiency gains, mass layoffs haven't materialized. Firms are maintaining headcounts due to "institutional barriers" and the realities of the billable hour.

The Proactive Shift: This is the ultimate reminder that technology doesn't dictate economics. *We humans do.* The legal profession controls its own business models. We have the agency to decide how the "productivity dividend" of AI is spent. We can choose to use these efficiency gains to merely juice profit margins, or we can use them to reduce burnout, improve work-life balance, and expand access to justice. The "slow" adoption described in the article isn't a failure; it's a buffer period that allows us to make ethical business decisions rather than reactive ones.

Why latency is a gift

The most important takeaway from the *MIT* piece isn't that the robots are failing; it's that the transformation is happening slower than the hype predicted. An economist in the article notes that the impact on the labor market will be "incremental" and that "institutional barriers" are slowing the shift.

In the technology world, "latency" is defined as the delay between input and response and is usually considered a defect. But right now, for the legal profession, latency may be our greatest asset.

This gap between the arrival of the technology and the total transformation of the industry is not a sign of failure or Luddism. It's a strategic buffer. If the "AI Apocalypse" had happened overnight, with perfect models and instant adoption, we really would have been forced to react in panic, seriously risking our training pipelines and ethical standards in the process.

Instead, we've been given time. This period of latency is our window of opportunity to do the "proactive" work I mentioned above. It offers the breathing room to answer the hard questions: *How do we teach judgment without relying on drudgery? How do we bill for value instead of time? How do we integrate these tools without losing our "mental model" of the law?*

The real danger isn't that the technology is moving too fast, but that we will squander this pause. By training, lawyers are reactive; we're taught to wait for a clear set of facts before we make a move. But we can't afford to do that here.

This "hype correction" is not a signal to sit back and wait for the dust to settle. It's a rare invitation to proactively build the infrastructure of the future before the cement dries.

We have the agency to determine how this profession evolves. Let's not waste this moment waiting for the next thing to happen *to* us.